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U.S. Department of State Diplomacy in Action

Trinidad and Tobago

Country Reports on Human Rights Practices
Bureau of Democracy, Human Rights, and Labor
2003
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Trinidad and Tobago, a member of the Commonwealth of Nations, is a parliamentary democracy in which there have been generally free and fair elections since independence from the United Kingdom in 1962. Parliament elects a president, whose office is largely ceremonial but does have some appointive power. In October 2002 general elections, Prime Minister Patrick Manning's People's National Movement (PNM) secured a 20-16 seat victory over the United National Congress (UNC), breaking an 18-18 tie in Parliament and ending a 9-month parliamentary stalemate. The judiciary is independent.

The Ministry of National Security oversees the police service and the defense force, rendering them responsive to civilian authority. An independent body, the Police Service Commission, makes all personnel decisions in the Police Service, and the Ministry had little direct influence over changes in senior positions. While the civilian authorities maintained effective control of the security forces, some members of the security forces committed human rights abuses.

Oil and natural gas production and related downstream petrochemical industries, including ammonia and methanol production, provided the base for the market-based economy. The country's population was approximately 1.3 million. The service sector was the largest employer, although industrialization and associated plant construction created many jobs in the construction industry. Agriculture, while contributing only 11 percent to gross domestic product, remained an important employer, both at the subsistence and commercial level. Unemployment, at a reported 11 percent, contributed to a skewed income distribution. The Central Bank projected the economic growth rate to be approximately 3.2 percent for the year.

The Government generally respected the human rights of its citizens; however, there were problems in some areas. There were police killings during apprehension and while in custody, and there were reports of police and guard abuse of prisoners. Poor prison conditions and significant violence against women remained problems.

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary and Unlawful Deprivation of Life

There were no reports of political killings; however, the police killed a number of persons during arrest or questioning, in circumstances that were under investigation.

On May 25, media reported that a police officer shot Gideon Edwards, who apparently had become mentally deranged. Police alleged he wielded a knife during the incident. The next day, police officers shot and killed two persons in a drug raid. On May 27, police shot and killed two men, one in Toco and another in Port of Spain; the latter was an outpatient at a mental hospital. On May 31, police killed a man in Bagatelle when he tried to escape questioning. Police conducted investigations, and inquests or final disposition were pending at year's end.

On September 5, police in San Fernando arrested Shaun McLeod, age 23, for using obscene language. The police allegedly beat McLeod while in custody, and he died the same evening at San Fernando General Hospital. An autopsy revealed McLeod died of blunt trauma to the head. After an investigation, the authorities arrested a police constable and charged him with manslaughter; his trial was pending at year's end.

The Department of Public Prosecutions (DPP) indicted three prison officers in connection with the 2001 death of prisoner Anton Cooper. A magistrate's court established a prima facie case of murder, and the guards were jailed awaiting trial at year's end.

In October, a jury found former cabinet minister Danraj Singh not guilty for the 1999 slaying of politician Hanraj Sumairsingh.

b. Disappearance

There were no reports of politically motivated disappearances.

Criminal kidnappings for ransom were a growing problem.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution prohibits such practices; however, there were credible reports of police and prison personnel abusing prisoners in incidents that involved beating, pushing, and verbal insults. In November, an Amnesty International (AI) team visited the country and found evidence of "rough" treatment of suspects. After walking tours of neighborhoods, they stated that the police were "obviously roughing up suspects."

In May, Uriel Mitchell claimed masked police officers repeatedly beat him with electrical cable and kicked and slapped him during an interrogation at his Chaguanas home. In June, Lendl Perez, a resident of Gasparillo, said that police entered his home and proceeded to pistol-whip and kick him before taking him into custody. Police charged Perez with resisting arrest and denied any wrongdoing.

Residents of the Laventille and Sea Lots neighborhoods claimed police and army units, conducting raids in May, harassed and beat residents during their neighborhood sweeps. The police claimed to have shot their guns in the air to frighten the residents. Residents of El Socorro made similar claims in June.

In September, Port of Spain resident Trevor Jack claimed he was brutally beaten by police while in custody on charges of shoplifting. He was treated at San Fernando General Hospital for broken ribs and a ruptured spleen. Police officials promised a full investigation into Jack's claim.

In September 2002, prison authorities opened an investigation into claims by death row inmate Damian Ramiah that he had been severely beaten by prison officers in July 2002. Prison authorities said that an inquiry recommended an officer be put in charge of an investigation of the officers alleged to have participated in the beating. At year's end, Ramiah remained in custody, and his claims were still being investigated.

In December 2002, Allan Saran confessed to involvement in the kidnaping for ransom of a Port of Spain resident (subsequently freed) and identified two police officers as accomplices. The DPP indicted Saran and his accomplices, and the case was in process at year's end.

On December 15, San Fernando's High Court awarded Selwyn Murray \$21,125 (TT\$130,000) for police brutality that occurred in April 2001. He was arrested for alleged possession of marijuana and was held overnight for delinquent spousal maintenance payments. The police beat him, breaking six ribs and inflicting additional injuries to his ankles, wrist, chest and forearm. The following day, Murray had to have surgery on his lung. The High Court's award comprised a pain and suffering package of \$14,700 (TT\$90,000) and a landmark \$6,550 (TT\$40,000) further penalty for the police brutality.

Prison conditions were poor. The Frederick Street Prison in Port of Spain, which was built in 1812, was designed for 250 inmates but held approximately 900 prisoners at year's end. Diseases such as chicken pox, tuberculosis, HIV/AIDS, and viruses spread easily, and prisoners had to purchase their own medication. The Commissioner of Prisons reported that the entire prison system held 3,991 inmates as of October. Prison overcrowding continued to be a problem. A maximum security prison, opened in late 1998, had an intended capacity of 2,450. However, as of October it held approximately 785 inmates and had done little to relieve the overcrowding in the detention system.

Pretrial detainees were held separately from convicted prisoners, although they could be in the remand section of the same facilities as convicted prisoners.

Women were held at a separate prison facility where conditions generally met international standards. Children between the ages of 15 and 19 were held at the Youth Training Center. Younger children were sent to the Boy's Industrial School.

In June, 75 prisoners staged a riot in the prison attached to the San Fernando Magistrate's Court. Criminal Investigation Division officers, along with Crime Suppression Unit officers and firemen quelled the uprising. The prisoners claimed they had been abused and that guards had stolen their possessions.

The Government permitted prison visits by independent human rights observers, but the Ministry of National Security must approve each visit.

d. Arbitrary Arrest, Detention, or Exile

The Constitution prohibits arbitrary arrest or detention, and the Government generally observed this prohibition.

The national police force is divided into nine countrywide divisions and had 5,896 members. It is headed by a commissioner who is appointed by the Police Service Commission, after consultation with the Prime Minister. Municipal police, who are under the jurisdiction of 14 regional administrative bodies, supplement the national service. In October, the Government announced formation of a Special Crime Fighting Unit, composed of police and Defense Force personnel, to address public concerns over the high rate of violent crime, kidnappings for ransom, and other security issues.

Police corruption continued to be a problem. An independent body, the Police Complaints Authority, received complaints about the conduct of any police officer, monitored the investigation of complaints, and determined disciplinary measures where appropriate, including dismissal. However, Police Service Commission restrictions limited the authority's ability to dismiss police officers. Recent governments agreed that there was a need for reform because the commission inhibits the way the Commissioner and his senior staff may discipline offending officers operationally.

A police officer may arrest a person either based on a warrant issued or authorized by a magistrate or without a warrant when the officer witnesses commission of the alleged offense. For less serious offenses, the authorities typically brought the accused before a magistrate by way of a summons, requiring the accused to appear within 48 hours, at which time the accused could enter a plea. For more serious offenses, when the accused was brought before the court, the magistrate proceeded with a preliminary inquiry or, alternatively, committed the accused to prison on remand or allowed the accused to post bail until the inquiry. In practice, serious offenders also were charged within 48 hours following arrest.

The court may and customarily did grant bail to any person charged with any offense other than murder, treason, piracy, hijacking, or for any other offense for which death was the penalty fixed by law. In cases in which bail was refused, magistrates advised the accused of their right to an attorney and, with few exceptions, allowed them access to an attorney once they were in custody and prior to any interrogation. Police have the authority, under the Summary Courts Act, to grant bail to individuals charged with summary offenses.

In April, the courts freed six men who had been sentenced to prison terms longer than the law permitted. The Summary Courts Act provides that magistrates must limit multiple-offense consecutive prison terms to a maximum of 3 years. The six men, freed in April, had received consecutive sentences on their various charges for longer than 3 years. In one instance, an inmate served an additional 6 years beyond the 3 years required by law.

The Minister of National Security may authorize preventive detention in order to prevent actions prejudicial to public safety, public order, or national defense, and the Minister must state the grounds for the detention. There were no reports that the authorities abused this procedure.

The Constitution prohibits forced exile, and it was not used.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary, and the Government generally respected this provision in practice. The judiciary provided citizens with a fair judicial process.

The judiciary is divided into a Supreme Court of Judicature and the Magistracy. The Supreme Court is composed of the Court of Appeal and the High Court; the Magistracy includes the summary courts and the petty civil courts.

All criminal proceedings commence with the filing of a complaint in the summary court. Minor offenses are tried before the magistrate. For more serious offenses, the magistrate must conduct a preliminary inquiry. If there is sufficient evidence to support the charge, the accused is committed to stand trial before a judge and jury of the High Court. All civil matters are heard by the High Court. Both civil and criminal appeals may be filed with the local court of appeal and ultimately to the Privy Council in London.

The Constitution provides for the right to a fair trial, and an independent judiciary generally enforced this right. All criminal defendants have the right to an attorney. In practice, the courts sometimes appointed attorneys for those persons charged with indictable offenses (serious crimes) if they could not retain one on their own behalf. The law requires that a person accused of murder have an attorney. An indigent person may refuse to accept an assigned attorney for cause and may obtain a replacement.

Despite serious efforts to improve the administration of justice, problems remained in some areas. Trial delays, while not as extensive as in past years, remained a problem: Adults prosecuted for serious offenses were committed for trial or discharged in 2 to 3 years in capital cases or within 5 years in noncapital cases; minors were tried or discharged within 1 year. The High Court reduced its trial backlogs, but they remained significant at the magistrate court level. To help improve efficiency, the courts used computer-aided transcription to more speedily and efficiently create a record.

The death penalty was mandatory in all murder convictions for persons 18 years of age or older; convicted minors were jailed pending a presidential pardon. After the Government sought to curtail appeals by death row inmates to the Inter-American Commission on Human Rights (IACHR) and the U.N. Human Rights Committee, the Privy Council ruled that by ratifying a treaty that provides for individual access to an international body, the Government made that process part of the domestic criminal justice system, thereby extending the scope of the due process clause of the Constitution, and that executing a prisoner with such an appeal pending would constitute a violation of due process. At year's end, the Government had not determined what to do with approximately 100 persons affected by this ruling.

The 2000 Integrity in Public Life Act, which established an Integrity Commission with jurisdiction and control over the financial activities and ethical conduct of persons in public life and persons exercising public functions, was used as the basis for investigations of the activities of several public officials, including former Prime Minister Panday, in the months prior to the 2002 elections. In 2002, Panday was arraigned in Magistrate's Court; after continued legal filings and postponements, the case was adjourned until March 2004. The Panday case was the first filed under the new act.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such practices, and the Government generally respected these prohibitions in practice.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press, and the Government generally respected these rights in practice. An independent press and a functioning democratic political system combined to ensure freedom of speech and of the press.

A Board of Film Censors is authorized to ban films that it considers to be against public order and decency or contrary to the public interest. This includes films that it believes may be controversial in matters of religion or race, or that contain seditious propaganda. In practice, films rarely were banned.

The Government did not restrict access to the Internet.

The Government did not restrict academic freedom.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly, and the Government generally respected this right in practice. The police routinely granted the required advance permits for street marches, demonstrations, or other outdoor public meetings. Amendments to the Summary Offences Act require that permits for public meetings and rallies be applied for 48 hours in advance instead of 24 hours, and make it an offense to hold a public meeting without a permit under the guise of conducting an exempted religious, educational, recreational, or sports function.

The Constitution provides for freedom of association, and the Government generally respected this right in practice. Registration or other governmental permission to form private associations is not required.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respected this right in practice.

The Government limited the number of foreign missionaries allowed to enter the country to 30 per denomination. Missionaries must meet standard requirements for an entry visa, must represent a registered religious group, and may not remain in the country for more than 3 years.

The Government was known to monitor closely only one religiously affiliated group, a radical Muslim organization called the Jamaat al Muslimeen, some members of which attempted a coup in 1990. The Government's surveillance focused on the group's links to crime, potential activities leading to civil unrest, and the actions of some members who traveled to Libya as students.

For a more detailed discussion, see the [2003 International Religious Freedom Report. \(//2009-2017.state.gov/j/drl/rls/irf/2003/\)](https://2009-2017.state.gov/j/drl/rls/irf/2003/)

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for these rights, and the Government generally respected them in practice.

In 2000, the Government acceded to the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Government had not yet passed legislation to implement obligations accepted under the Convention, although the authorities generally cooperated with the office of the U.N. High Commissioner for Refugees (UNHCR). Until Parliament approves the legislation, the Ministry of National Security's Immigration Division handled any

requests for asylum on a case-by-case basis. In practice, the Government provided protection against refoulement and placed asylum seekers in the care of a local NGO pending resolution of their cases, which were reviewed by the office of the UNHCR.

During the year, there were six cases of persons who fell outside the definition of the U.N. Convention and its Protocol. On January 14, authorities detained three men from Cote d'Ivoire for entering the country illegally and handed them over to the NGO. In addition, the NGO housed two women from Guyana and a Cuban citizen who also requested asylum. The Government denied asylum to the Cuban.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides citizens with the right to change their government peacefully, and citizens exercised this right in practice through periodic elections held on the basis of universal suffrage. The Constitution extends the right to vote to citizens, as well as to legal residents at least 18 years of age who are citizens of other Commonwealth countries. Parliamentary elections are held at intervals not to exceed 5 years, and elections for the Tobago House of Assembly occur every 4 years. The most recent general election was held on October 7, and observers found it to be generally free and fair.

The two major political parties were the People's National Movement and the United National Congress. The PNM was primarily but not exclusively Afro-Trinidadian; the UNC was primarily but not exclusively Indo-Trinidadian. Voters in the 2002 general elections supported the PNM, which retained control of the Government. The UNC has called repeatedly for constitutional reform to address what it considers imbalances in the distribution of political power. Until the Government addresses constitutional reform, the UNC has followed a policy of "total noncooperation" with the PNM. In the July local elections, the PNM won 9 electoral districts and the UNC won 5.

There were no specific laws that restrict the participation of women or minorities in government or the political parties. The PNM and UNC have numerous female party leaders and members, and both parties have appointed women to cabinet positions in their respective governments. During local elections in July, 50 of the 126 PNM candidates were women, and 7 of the 9 city councilpersons elected in San Fernando were women. Women comprised slightly more than half of all registered voters in the country, and the voters elected 7 women to the 36-seat House of Representatives. There were 11 women in the 31-member Senate and 6 women in the 25-member Cabinet.

Both major political parties reached out to ethnic minority voters, and ethnic minorities occupied significant positions in government. Senator Howard Chin Lee, PNM member and Minister of Tourism, and Gerald Yetming, Member of Parliament from the UNC, were both ethnic Chinese. Chinese were the third largest distinct ethnic group, representing approximately 1 percent of the population.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups operated without government restriction, investigating and publishing their findings on human rights cases. Government officials generally were cooperative and responsive to their views; however, the Government responded strongly to AI's criticism of prison conditions and due process.

An independent Ombudsman received complaints relating to governmental administrative issues and investigated complaints of human rights abuse. The Ombudsman can make recommendations but does not have authority to force government offices to take action.

In 2002, the Inter-American Court of Human Rights cited the Government for violating the American Convention on Human Rights by executing inmates who had unresolved appeals pending before the IACHR and ordered the Government to pay more than \$2.9 million to the families and attorneys of several death row inmates. The Government contested the Court's findings, stating that the executions in question had been carried out in accordance with applicable law, and continued to pursue measures to block having to comply with the ruling.

Section 5 Discrimination Based on Race, Sex, Disability, Language, or Social Status

The Government generally respected in practice the constitutional provisions for fundamental human rights and freedoms for all without discrimination based on race, origin, color, religion, or sex.

Women

Abuse of women continued to be a significant problem. There was increased media coverage of domestic abuse cases and signs of a shift in public opinion, which previously had held that such cases were a private matter. The Government also improved aid for victims. In February, the Attorney General opened a regional conference on gender-based violence and the administration of justice to review the legal system's response to gender-based violence with a focus on police training and supporting services. Murder, rape, and other crimes against women were reported frequently, but it was believed that many sexual crimes were unreported. The establishment of a community police division improved police responsiveness to reports of domestic abuse, but some police officers were reportedly unsympathetic or reluctant to pursue such cases, resulting in underreporting of crimes of violence against women. Two government ministries, operating independently, directed the NGOs that ran most of the country's social programs addressing domestic violence, including five shelters for battered women.

Rape, spousal abuse, and spousal rape are criminal offenses. A rape crisis center offered counseling for rape victims and perpetrators on a voluntary basis. The Government operated a 24-hour domestic violence hotline, which received calls and referred victims to shelters, counseling, or other assistance. The hotline was for victims of rape, domestic violence, or other violence against women and received approximately 2,698 calls through September, although 1,182 were identified as prank calls.

Prostitution is illegal, and the authorities continued to monitor and pursue prosecutions against persons charged with soliciting for the purpose of prostitution.

There are no laws pertaining to sexual harassment, and it was a problem.

Many women held positions in business, the professions, and government. Nevertheless, men still tended to hold most senior positions. There was no law or regulation requiring equal pay for equal work.

Women's participation in education was virtually equal to that of men.

The Division of Gender Affairs in the Ministry of Community Development and Gender Affairs was charged with protecting women's rights in all aspects of government and legislation. Several active women's rights groups also existed.

Children

The Government's ability to protect children's welfare was challenged by a lack of funds and expanding social needs. Education was free and compulsory through primary school, usually ending at 11 or 12 years of age. Some parts of the public school system seriously failed to meet the needs of the school age population due to overcrowding, substandard physical facilities, and occasional classroom violence by gangs. The Government committed resources to building new facilities and expanded access to free secondary education.

The Domestic Violence Act provides protection for children abused at home. Abused children removed from the home usually were placed with relatives. If there was no relative who could take them, there were several government institutions and NGOs that accepted children for placement.

A 2000 law establishes the upper age in the definition of a child at 18 years of age, abolishes corporal punishment as a penal sanction for children under 18, and prohibits sentencing a person between 14 and 18 years of age to prison. A companion law established a new Children's Authority to license and monitor community residences, foster homes, and nurseries, and to investigate complaints about the care of children in such locations. At year's end, the acts had not yet been proclaimed, as the Government was taking steps to appoint a board to manage the new authority.

Persons with Disabilities

There is no legislation that specifically enumerates or protects the rights of persons with disabilities or mandates the provision of access to buildings or services. The lack of access to transportation, buildings, and sidewalks was a major obstacle for persons with disabilities. The Government provided some public assistance and partial funding to a variety of NGOs, which in turn provided direct services to members or clients with disabilities. During the summer, a number of persons with disabilities protested outside the gates of National Flour Mills over what they claimed were discriminatory hiring practices by the company; the protest ended when company officials and government authorities promised to look into their concerns.

Indigenous People

Members of a very small group in the population identify themselves as descendants of the original Amerindian population of the country. They maintain social ties with each other and other aboriginal groups and were not subject to discrimination.

National/Racial/Ethnic Minorities

Various ethnic and religious groups lived together peacefully, generally respecting one another's beliefs and practices. However, at times racial tensions appeared between Afro-Trinidadians and Indo-Trinidadians, which each make up approximately 40 percent of the population. The private sector was dominated by Indo-Trinidadians and persons of European, Middle Eastern, or Asian descent. Indo-Trinidadians predominated in agriculture. Afro-Trinidadians were employed in disproportionate numbers in the civil service, police, and military. Some Indo-Trinidadians asserted that they were excluded from equal representation in the civil service due to racial discrimination.

Section 6 Worker Rights

a. The Right of Association

The 1972 Industrial Relations Act (IRA) provides that all workers, including those in state-owned enterprises, may form or join unions of their own choosing without prior authorization. The IRA provides for the mandatory recognition of trade unions when a union satisfies the Registration Recognition and Certification Board that it represents 51 percent or more of the workers in a specified bargaining unit. Union membership has declined, with an estimated 15 to 25 percent of the work force organized in approximately 19 active unions. Most unions were independent of government or political party control, although the Sugar Workers' Union historically was allied with the UNC.

The law prohibits anti-union activities before a union is registered legally, and the Ministry of Labor enforced this provision when it received a complaint. A union also may bring a request for enforcement to the Industrial Court, which may order employers who are found guilty of anti-union activities to reinstate workers and pay compensation or impose other penalties including imprisonment. When necessary the Ministry of Labor's conciliation service determines which unions should have senior status.

Unions freely joined federations and affiliated with international bodies.

b. The Right to Organize and Bargain Collectively

The IRA establishes the right of workers to collective bargaining. The conciliation service maintained statistical information regarding the number of workers covered by collective bargaining agreements and the number of anti-union complaints filed.

All employees except those in "essential services," which include the police and many other government employees, have the right to strike. The International Labor Organization (ILO) has criticized the Government's definition of essential services as being overly broad and has requested that the legislation be amended.

There were significant strikes during the year. In January, major public hospitals in San Fernando curtailed their services when doctors staged sick-outs to protest workplace safety and collective bargaining arrangements. During August and September, workers at Carlisle Wheel and Manufacturing walked out on their jobs to protest employment terms. In September, DPP prosecutors staged a sick-out to protest lack of resources and inadequate staffing that, according to them, hampered their ability to prosecute criminal matters effectively.

The Labor Relations Act prohibits retribution against strikers and provides for grievance procedures if needed. A special section of the Industrial Court handles mandatory arbitration cases. Arbitration agreements are enforceable and can be appealed only to the Industrial Court. Most observers considered this court to be impartial; it consisted of government, business, and labor representatives.

There are several export processing zones (EPZs). The same labor laws applied in the EPZs as in the rest of the country.

c. Prohibition of Forced or Bonded Labor

The law does not prohibit specifically forced or bonded labor, but there were no reports that such practices occurred. There were also no reports of forced or bonded labor by children.

d. Status of Child Labor Practices and Minimum Age for Employment

The minimum legal age for workers is 12 years. Children from 12 to 14 years of age may work only in family businesses. Children under the age of 18 legally may work only during daylight hours, with the exception of 16- to 18-year-olds, who may work at night in sugar factories. The Ministry of Labor and Small and Micro-Enterprises is responsible for enforcing child labor provisions, but enforcement was lax because there were no established mechanisms for receiving, investigating, and addressing child labor complaints.

There was no organized exploitation of child labor, but a UNICEF study estimated that 1.2 percent of children from 5 to 14 years of age were engaged in paid work, and that 0.3 percent were engaged in unpaid work for someone other than a family member. An ILO study reported that children engaged in several types of work, including scavenging, agriculture, domestic work, street vending, and commercial sexual activity.

In March, the Government ratified ILO Convention 182 on elimination of the worst forms of child labor; however, it had yet to enact the relevant enabling legislation by year's end.

e. Acceptable Conditions of Work

In January, Parliament approved an increase in the national minimum wage to \$1.30 (TT\$8.27) per hour. Actual wages varied considerably among industries, and while the minimum wage did not provide a decent standard of living for a worker and family, most workers earned more than the minimum. The Ministry of Labor enforced the minimum wage regulations.

The Minimum Wages Act establishes a 40-hour workweek, time-and-one-half pay for the first 4 hours of overtime on a workday, double pay for the next 4 hours, and triple pay thereafter. For Sundays, holidays, and off days, the act also provides for double pay for the first 8 hours and triple pay thereafter. Daily rest periods and paid annual leave formed part of most employment agreements.

The Factories and Ordinance Bill of 1948 sets requirements for health and safety standards in certain industries and provides for inspections to monitor and enforce compliance. The IRA protects workers who file complaints with the Ministry of Labor regarding illegal or hazardous working conditions. If it is determined upon inspection that hazardous conditions exist in the workplace, the worker is absolved for refusing to comply with an order that would have placed him or her in danger.

f. Trafficking in Persons

While there are no laws that specifically address trafficking in persons, the illegality of such acts is covered broadly in a variety of laws that address kidnapping, labor conditions, pimping and prostitution, slavery, and indentured servitude. There were no reports that persons were trafficking to, from, or within the country.

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